

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #07	CCRB Case #: 202106300	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/16/2021 5:11 PM	Location of Incident: Rear of § 87(2)(b)	18 Mo. SOL 4/16/2023	Precinct: 90		
Date/Time CV Reported Mon, 10/18/2021 1:39 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 10/18/2021 1:39 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Joanna Barletta	00430	951523	090 PCT
3. PO Jesse Trap	10734	960033	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael Ignatz	19499	941927	090 PCT
2. PO Jamal Ahmed	23349	968920	090 PCT
3. SGT Alvaro Tobon	01793	940804	090 PCT
4. SGT Joseph Zaikowski	05130	931470	PBQ/N
5. PO Rodney Fernandez	16671	957580	090 PCT
6. PO Daniel Roberts	22652	962735	PSA 3
7. PO Jason Kuang	02236	949185	090 PCT
8. PO Kaylin Arrigo	25264	968946	090 PCT
9. LT Timothy Fox	00000	944571	090 PCT
10. PO Piotr Trusewicz	27088	967369	090 PCT
11. PO Steven Dulcey	05205	964497	PSA 3
12. PO Rudy Dominguez	08683	936503	090 PCT
13. PO Enmanuel Mendoza	05660	963650	090 PCT
14. PO Nicoleta Popovici	14681	956176	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
15. PO Joseph Barone	14966	960958	090 PCT
16. PO Matthew Schulte	14847	961260	090 PCT
17. PO Enis Bektesevic	26115	966961	PSA 3
18. PO Alvaro Menjivar	11289	942194	PSA 3
19. SGT Carlos Alvarez	00200	927852	PSA 3
20. PO Michael Tung	18086	959318	090 PCT
21. PO Michael Hendriks	16879	893154	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Jesse Trap	Force: Police Officer Jesse Trap pointed his gun at § 87(2)(b)	
B . PO Jesse Trap	Force: Police Officer Jesse Trap pointed his gun at § 87(2)(b)	
C . PO Jesse Trap	Force: Police Officer Jesse Trap pointed his gun at § 87(2)(b)	
D . PO Jesse Trap	Force: Police Officer Jesse Trap pointed his gun at § 87(2)(b)	
E . PO Jesse Trap	Force: Police Officer Jesse Trap pointed his gun at § 87(2)(b)	
F . SGT Joanna Barletta	Force: Sergeant Joanna Barletta pointed her gun at § 87(2)(b)	
G . SGT Joanna Barletta	Force: Sergeant Joanna Barletta pointed her gun at § 87(2)(b)	
H . SGT Joanna Barletta	Force: Sergeant Joanna Barletta pointed her gun at § 87(2)(b)	
I . SGT Joanna Barletta	Force: Sergeant Joanna Barletta pointed her gun at § 87(2)(b)	
J . SGT Joanna Barletta	Force: Sergeant Joanna Barletta pointed her gun at § 87(2)(b)	
K . Officers	Force: Officers pointed their guns at § 87(2)(b)	
L . PO Jesse Trap	Force: Police Officer Jesse Trap used physical force against § 87(2)(b)	
M . PO Jesse Trap	Discourtesy: Police Officer Jesse Trap spoke discourteously to § 87(2)(b)	
N . PO Jesse Trap	Discourtesy: Police Officer Jesse Trap spoke discourteously to § 87(2)(b)	
O . PO Jesse Trap	Discourtesy: Police Officer Jesse Trap spoke discourteously to § 87(2)(b)	
P . PO Jesse Trap	Discourtesy: Police Officer Jesse Trap spoke discourteously to § 87(2)(b)	
Q . SGT Joanna Barletta	Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b)	
R . SGT Joanna Barletta	Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b)	
S . PO Jesse Trap	Force: Police Officer Jesse Trap used physical force against § 87(2)(b)	
T . PO Jesse Trap	Force: Police Officer Jesse Trap used physical force against § 87(2)(b)	
U . PO Jesse Trap	Discourtesy: Police Officer Jesse Trap spoke discourteously to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
V . SGT Joanna Barletta	Force: Sergeant Joanna Barletta used physical force against § 87(2)(b)	
W . SGT Joanna Barletta	Force: Sergeant Joanna Barletta used physical force against § 87(2)(b)	
X . SGT Joanna Barletta	Abuse: Sergeant Joanna Barletta forcibly removed § 87(2)(b) to the hospital.	

Case Summary

§ 87(2)(b) called the CCRB Processing System on October 18, 2021 to report the following complaint (BR1).

§ 87(2)(b) 14-year-old § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) are all siblings. § 87(2)(b) has five children, one of them being 9-year-old § 87(2)(b). All the above people were at § 87(2)(b) in Brooklyn, the NYCHA § 87(2)(b) Housing Complex, on October 16, 2021. At 5:08PM, an unrelated female called 911 reporting two Black males with a knife. Sergeant Joanna Barletta and Police Officer Jesse Trap, both of the 90th Precinct, responded. PO Trap and Sgt. Barletta pointed their guns at § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b).

(Allegations A, B, C, D, F, G, H, and I: Force, § 87(2)(g) § 87(2)(b))
alleged PO Trap and Sgt. Barletta pointed their guns at § 87(2)(b) (Allegations E and J: Force, § 87(2)(g) § 87(2)(b)) alleged that officers other than PO Trap and Sgt. Barletta pointed their guns at him (Allegation K: Force, § 87(2)(g) § 87(2)(b)) PO Trap allegedly used force as he handcuffed § 87(2)(b) to a fence (Allegation L: Force, § 87(2)(g) § 87(2)(b)) While PO Trap and Sgt. Barletta attempted to gain control of the situation, PO Trap used profanity in speaking to § 87(2)(b) § 87(2)(b) § 87(2)(b) (Allegations M, N, O and P: Discourtesy, § 87(2)(g) § 87(2)(b)) and Sgt. Barletta used profanity in speaking to § 87(2)(b) and § 87(2)(b) (Allegations Q and R: Discourtesy, § 87(2)(g) § 87(2)(b)) PO Trap pushed § 87(2)(b) away as she approached him and § 87(2)(b) (Allegation S: Force, § 87(2)(g) § 87(2)(b)) PO Trap put § 87(2)(b) into a car. After Lieutenant Timothy Fox of the 90th Precinct authorized § 87(2)(b) to talk to § 87(2)(b) PO Trap pushed § 87(2)(b) (Allegation T: Force, § 87(2)(g) § 87(2)(b)) and told him to “back the fuck up” (Allegation U: Discourtesy, § 87(2)(g) § 87(2)(b)) When Sgt. Barletta called an ambulance for § 87(2)(b) § 87(2)(b) wrapped himself around § 87(2)(b) Sgt. Barletta pulled each of them apart (Allegations V and W: Force, § 87(2)(g) § 87(2)(b)) was arrested, and Sgt. Barletta removed § 87(2)(b) to the hospital (Allegation X: Abuse of Authority, § 87(2)(g) § 87(2)(b))

The investigation received one video from § 87(2)(b) (BR2), NYCHA footage (BR3-BR10), and 28 body-worn camera videos (BWC) (BR11).

Findings and Recommendations

Allegation A- Force: Police Officer JESSE TRAP pointed his gun at § 87(2)(b)
Allegation B- Force: Police Officer JESSE TRAP pointed his gun at § 87(2)(b)
Allegation C- Force: Police Officer JESSE TRAP pointed his gun at § 87(2)(b)
Allegation D- Force: Police Officer JESSE TRAP pointed his gun at § 87(2)(b)
Allegation E- Force: Police Officer JESSE TRAP pointed his gun at § 87(2)(b)
Allegation F- Force: Sergeant JOANNA BARLETTA pointed her gun at § 87(2)(b)
Allegation G- Force: Sergeant JOANNA BARLETTA pointed her gun at § 87(2)(b)
Allegation H- Force: Sergeant JOANNA BARLETTA pointed her gun at § 87(2)(b)
Allegation I- Force: Sergeant JOANNA BARLETTA pointed her gun at § 87(2)(b)
Allegation J- Force: Sergeant JOANNA BARLETTA pointed her gun at § 87(2)(b)
Allegation K- Force: Officers pointed their guns at § 87(2)(b)
Allegation L- Force: Police Officer JESSE TRAP used physical force against § 87(2)(b)
Allegation M- Discourtesy: Police Officer JESSE TRAP spoke discourteously to § 87(2)(b)

Allegation N- Discourtesy: Police Officer JESSE TRAP spoke discourteously to § 87(2)(b)

Allegation O- Discourtesy: Police Officer JESSE TRAP spoke discourteously to § 87(2)(b)

Allegation P- Discourtesy: Police Officer JESSE TRAP spoke discourteously to § 87(2)(b)

Allegation Q- Discourtesy: Sergeant JOANNA BARLETTA spoke discourteously to § 87(2)(b)

Allegation R-Discourtesy: Sergeant JOANNA BARLETTA spoke discourteously to § 87(2)(b)

Allegation S-Force: Police Officer JESSE TRAP used physical force against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were all living or visiting § 87(2)(b) on October 16, 2021, at 5:11PM. § 87(2)(b) and § 87(2)(b) explained that § 87(2)(b) and § 87(2)(b) were having a dispute about a phone inside of § 87(2)(b). § 87(2)(b) then began to get involved by coming near § 87(2)(b) and § 87(2)(b) or by arguing with § 87(2)(b) (BR12; BR13).

§ 87(2)(b) explained he and § 87(2)(b) went into the back courtyard so he could help all of his siblings calm down. § 87(2)(b) came down and § 87(2)(b) attempted to calm him too. § 87(2)(b) followed them, and § 87(2)(b) saw that § 87(2)(b) had a large kitchen knife. A different family member then told the siblings that the police were coming (BR12).

In a NYCHA surveillance video inside of § 87(2)(b) § 87(2)(b) wears all black, § 87(2)(b) wears red pants, § 87(2)(b) wears a black sweatshirt with her hood up, and § 87(2)(b) wears a purple and black shirt. At 18:00-21:30 in the video and beginning at about 5:03PM, they all walk through the lobby on the way outside. § 87(2)(b) children, a girl dressed in pink and a boy dressed in black and red shorts, run outside. At 20:07, § 87(2)(b) hands § 87(2)(b) a long kitchen knife. § 87(2)(b) and § 87(2)(b) walk with the knife and get in the elevator (BR8).

In a 911 call, an anonymous female caller states that there are two black males with one holding a kitchen knife having a verbal altercation at § 87(2)(b) and a child asked her to call 911. She sees no injuries (BR14).

The CCRB contacted the 911 caller, who wished to remain anonymous. She stated that she was walking past § 87(2)(b) when she saw two black males fighting with a kitchen knife. She said there were other adults and children watching when an 8-year-old girl told her to call the police. After she did so, she told the adults standing there that she called the police and left the scene (BR15).

Upon hearing police were coming, § 87(2)(b) picked up § 87(2)(b) and walked her away from § 87(2)(b). § 87(2)(b) held onto the knife and told § 87(2)(b) to let it go. § 87(2)(b) was left as the only person holding a knife in the courtyard because § 87(2)(b) went into the NYCHA building. § 87(2)(b) saw PO Trap and Sgt. Barletta. PO Trap told him to “drop the fucking knife and get up against the gate.” He alleged that PO Trap then shoved him against the gate with PO Trap’s gun and knee in § 87(2)(b) back. PO Trap pushed § 87(2)(b) chest to get her back as she approached him (BR12).

§ 87(2)(b) explained she heard § 87(2)(b) and § 87(2)(b) were struggling with the knife, but she did not witness this. She saw PO Trap and Sgt. Barletta get out of their car and PO Trap yelled for everyone to “get on the fucking ground.” Sgt. Barletta and PO Trap pointed their guns at § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) asked PO Trap why he arrested § 87(2)(b) he pushed her chest (BR13).

In Sgt. Barletta’s BWC from 1:00- 2:25, PO Trap and Sgt. Barletta draw their guns and point them at § 87(2)(b) They state, “drop it; drop that” while someone next to § 87(2)(b) runs into the building. PO Trap tells § 87(2)(b) to “move to the fucking right” and Sgt. Barletta tells him to “keep your fucking hands up.” PO Trap throws a knife out of reach. PO Trap puts his leg between § 87(2)(b) legs while he handcuffs the right wrist to the fence. PO Trap’s knee and gun are not in § 87(2)(b) back. § 87(2)(b) and § 87(2)(b) come outside of the building and Sgt. Barletta points her gun at both while telling them to back up. At 1:40, PO Trap and Sgt. Barletta point guns at § 87(2)(b) and § 87(2)(b) while stating “back the fuck up.” § 87(2)(b) tells the officers to shoot her. PO Trap tells § 87(2)(b) to “back the fuck up.” § 87(2)(b) is not captured in the BWC (BR16).

In a video that a neighbor sent to § 87(2)(b) § 87(2)(b) goes near PO Trap and PO Trap pushes her twice from 00:50-00:18 (BR2).

§ 87(2)(b) was arrested for criminal possession of a weapon (BR17). His arrest report notes that PO Trap observed § 87(2)(b) struggling with a large knife with an “EDP.”

PO Trap and Sgt. Barletta both described seeing two people struggling with a 10-inch knife. They believed they were witnessing a homicide. PO Trap and Sgt. Barletta got out of the vehicle with their guns out because they understood the people could do harm to them or others with the knife and needed to use force greater than just a knife. They wanted to equalize the deadly threat of the knife. As they approached the two people, one of them ran away and left § 87(2)(b) holding the knife. They both pointed their guns at § 87(2)(b) because he had the knife. PO Trap and Sgt. Barletta used profanity to give him commands because of the chaos and urgency of the situation to get § 87(2)(b) to drop the knife. PO Trap then moved the knife away from § 87(2)(b) but it was still unsecured and presented a danger (BR18; BR19).

PO Trap handcuffed § 87(2)(b) to the fence. PO Trap did not put his gun or knee into § 87(2)(b) back (BR18).

PO Trap and Sgt. Barletta described that a loud and chaotic crowd formed which made them fear for the safety of the crowd, § 87(2)(b) and themselves because they were outnumbered and there was still an unsecured knife that anyone could use (BR18; BR19).

Sgt. Barletta pointed her gun only at § 87(2)(b) § 87(2)(b) and § 87(2)(b) because they were approaching the unsecured knife which they could use to harm others or themselves. Once other units had arrived, Sgt. Barletta handed the knife to another officer (BR19).

After viewing his and Sgt. Barletta’s BWC, PO Trap explained that he was holding his gun, but did not try to point it at anyone. He was holding his gun so that the uncooperative crowd did not try to

obtain the unsecured knife. He used profanity to maintain control of this crowd. He did not remember or see that he pushed § 87(2)(b) (BR18).

Patrol Guide Procedure 221-01 states that drawing a firearm prematurely or unnecessarily limits a uniformed member of the service's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. In addition, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (BR20).

DAO-DCT Disciplinary Case No. 2017-17005 states that in prior disciplinary cases, the NYPD has held that the use of profane remarks during stressful situations or while an officer is trying to get a chaotic situation under control, does not constitute misconduct (BR21).

All testimonies and footage show § 87(2)(b) and § 87(2)(b) holding a knife when PO Trap and Sgt. Barletta responded to a call for a fight with a knife. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As per BWC, no officers other than PO Trap and Sgt. Barletta drew or pointed guns. In addition, BWC never shows PO Trap and Sgt. Barletta point their guns at § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

As per BWC and PO Trap's testimony, PO Trap handcuffs § 87(2)(b) to the fence but does not apply any force to his back at all. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

BWC and witness footage show PO Trap pushed § 87(2)(b) twice. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation T- Force: Police Officer JESSE TRAP used physical force against § 87(2)(b)

§ 87(2)(b)

Allegation U- Discourtesy: Police Officer JESSE TRAP spoke discourteously to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) explained that § 87(2)(b) calmed his siblings down. PO Trap handcuffed § 87(2)(b) and then walked him to a police car. § 87(2)(b) followed the officers to the car. § 87(2)(b) was sitting in the car when a crowd formed. PO Trap told § 87(2)(b) to get "the fuck" out of his face and then slammed § 87(2)(b) onto a car (BR12; BR13).

In PO Trap's BWC from 6:05-7:30 (BR22), PO Trap walks with § 87(2)(b) to the car. § 87(2)(b) comes over and § 87(2)(b) asks officers if he can speak to § 87(2)(b). Lt. Fox stands next to PO Trap and tells § 87(2)(b) he can talk to § 87(2)(b). Lt. Fox goes over to § 87(2)(b) with other officers and tells him he can talk to § 87(2)(b) through the window. Officers next to PO Trap call to § 87(2)(b) to have him come talk to § 87(2)(b). § 87(2)(b) comes over and asks, "why you gotta touch me" to PO Trap. PO Trap pushes § 87(2)(b) back and tells him to "chill out" and then to "back the fuck up" at 7:28 in the BWC.

In PO Dominguez's BWC from 2:55-3:18, PO Trap puts his left arm perpendicular to the car. § 87(2)(b) moves his arms up and down by his elbows and PO Trap uses both of his arms to grab § 87(2)(b) shoulders and push him backward against a car (BR23).

PO Trap explained that a crowd followed him when he went to put § 87(2)(b) into the car. He described § 87(2)(b) as getting too close to the car for everyone's safety. PO Trap explained that 3:04 in PO Dominguez's BWC, § 87(2)(b) made a threatening punching motion and could have caused harm. The movement occurred when § 87(2)(b) pulls his right arm back with a closed fist, so his fist is about a foot away from his body. In the same second at 3:04 in the BWC, § 87(2)(b) then lowers his arm back to his side. Therefore, PO Trap had to push him back. After watching BWC, PO Trap said that he never heard Lt. Fox give permission for § 87(2)(b) to talk to § 87(2)(b) and he never used profanity (BR18).

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (BR20).

According to NYPD Patrol Guide Procedure 200-02, The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect (BR21).

§ 87(2)(g)
PO Trap's BWC recorded Lt. Fox giving permission and PO Dominguez's BWC recorded § 87(2)(b) making no punching motion as PO Trap described. § 87(2)(g)

Allegation V-Force: Sergeant JOANNA BARLETTA used physical force against § 87(2)(b).

Allegation W-Force: Sergeant JOANNA BARLETTA used physical force against § 87(2)(b).

Allegation X-Abuse of Authority: Sergeant JOANNA BARLETTA forcibly removed § 87(2)(b) to the hospital.

Police Officer Steven Dulcey from PSA 3 responded. In his BWC from 3:24-4:08, § 87(2)(b) walks past § 87(2)(b) and states, "y'all should take her; that's the one who had the knife." § 87(2)(b) threatens and attempts to fight § 87(2)(b). § 87(2)(b) states that § 87(2)(b) tried to stab her and her children. Officers stand between

§ 87(2)(b) and § 87(2)(b) An officer and § 87(2)(b) restrain § 87(2)(b) (BR24).

In Sgt. Barletta's BWC from 1:15-4:30, Sgt. Barletta states, "she's § 87(2)(b) EDP for sure." § 87(2)(b) holds her against the fence to restrain her. § 87(2)(b) states she will kill § 87(2)(b) At 4:20, Sgt. Barletta states § 87(2)(b) is "EDP" again. From 05:40-9:07, Sgt. Barletta tells § 87(2)(b) § 87(2)(b) and § 87(2)(b) that § 87(2)(b) needs to be evaluated by EMS. § 87(2)(b) walks § 87(2)(b) away. Sgt. Barletta states, "get her." Officers separate § 87(2)(b) and § 87(2)(b) by pulling them apart. Once separated, officers handcuff § 87(2)(b) and Sgt. Barletta leads her to an ambulance. Other officers handcuff § 87(2)(b) (BR25).

Police Officer Matthew Schulte of the 90 Precinct went with § 87(2)(b) to the hospital. In PO Schulte's BWC from 13:10- 13:40 (BR26), an EMT tells her she needs to go to the hospital to be seen by a doctor for psychiatric care.

§ 87(2)(b) was arrested for obstructing governmental administration because he latched his body to § 87(2)(b) and resisted arrest while not complying with police orders (BR27).

PO Schulte prepared the AIDED form for § 87(2)(b) It states that she threatened to harm herself and others and attempted to hurt others (BR28).

Sgt. Barletta explained that she made the decision to call an ambulance for § 87(2)(b) after deeming her to be emotionally disturbed because she was threatening others, tried to stab others, and was continually screaming and running around. When § 87(2)(b) wrapped his body around § 87(2)(b) Sgt. Barletta and other officers needed to separate them so that § 87(2)(b) could go to the hospital (BR19).

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (BR20).

Patrol Guide Procedure 216-01 states that uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner (BR29).

§ 87(2)(g)
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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR30).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR31).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR32).
- § 87(2)(b)

- Mediation, Civil, and Criminal Histories**
- As of January 20, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (BR37).

- As of January 20, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (BR37).

[REDACTED]

Squad Leader:	_____	Manager Vanessa Rosen	January 26, 2022
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date